

Contentious Chamber

Decision on the merits 155/2023 of November 27, 2023

File number: DOS-2020-03304

Subject: Complaint regarding late access and refusal to provide access to documents held by a prevention advisor

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, president, and Messrs. Christophe Boeraeve and Romain Robert, members;
Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";
Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data (hereinafter "Law of July 30, 2018");
Considering the internal regulations as approved by the Chamber of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter referred to as "the complainant";

The defendant: Cohezio, whose registered office is located at 1-8 Boulevard Bischoffsheim, registered under company number 0410.623.764, represented by Master Isabel Plets and Master Pauline Hellemans, hereinafter referred to as "the defendant";

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I. Facts and Procedure

1.

The subject of the complaint concerns the exercise of the right of access by the complainant to Cohezio. The complainant reports that his right of access was not respected due to Cohezio's refusal to provide him with a copy of certain documents and due to a late response in providing him with a copy of other documents.

2.

The complainant worked for Z and considered himself a victim of moral harassment by his director and sought assistance from Cohezio, the external service for prevention and protection at work. For these facts, the complainant resorted to the services of Cohezio three times:

I.

A first time in March 2015: the complainant participated in a preliminary interview for an intervention with a prevention advisor regarding psychosocial aspects (hereinafter "prevention advisor") of Cohezio;

II.

A second time in February 2019: the complainant participated in a preliminary interview for an intervention and submitted a request for informal psychosocial intervention to Cohezio;

III.

A third time in May 2019: the complainant submitted a request for formal psychosocial intervention for acts of moral harassment.

3.

Subsequently, the complainant exercised his right of access to Cohezio several times. These requests were made via emails and the subject of these requests varied each time.

4.

During his first exercise of the right of access on February 15, 2019, the complainant requested a copy

of the personal notes of the prevention advisor taken during his interview in March 2015. The prevention advisor responded that she was prohibited from transmitting these notes due to Article I.3-31 of the Code on Well-being at Work. The complainant was not satisfied with this response and reiterated an identical access request.¹

5.

During his second exercise of the right of access on February 15, 2019, the complainant requested a copy of the personal notes of the prevention advisor from his interview in March 2015, his file, and his medical file. The Cohezio agent indicated that it was not possible to provide him with direct access to his medical file as a medical file could only be transmitted from doctor to doctor. The complainant was not satisfied with this response, deeming it contrary to the GDPR and Article 7 of the Law on Patient Rights of August 22, 2002. He reiterated his request on February 21, 2019, and also

1 Document "right to copy personal data" from the complainant's inventory, document 44.

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requested his individual file concerning psychosocial aspects (hereinafter "psychosocial file").

6.

During his third exercise of the right of access on September 28, 2020, with the data protection delegate, the complainant requested a copy of his psychosocial file, the annexes of the opinions issued by Cohezio following the two informal and formal interventions of 2019, and all personal notes from prevention advisors concerning him. On October 9, 2020, the delegate responded to the complainant's request, stating that the complainant indeed had a right of access to his personal data. The delegate specified that the right of access is not an absolute right and that, in this case, the prevention advisors are subject to professional secrecy and cannot disclose identifiable information to third parties. The complainant was not satisfied with this refusal and reiterated his request for access.

7.

On October 20, 2020, the data protection delegate transferred to the complainant all documents from the file that he deemed authorized to transmit to him. The complainant considered this file incomplete as it did not contain the documents he specifically requested. The exact content of this file is listed in a letter dated October 28, 2020, sent by the data protection delegate. The complainant contested this response on October 28, 2020, indicating that, contrary to what the delegate had stated, he was missing the end-of-interview form from March 2015 among the list of documents enumerated by the delegate. The complainant then repeated a request for access to the missing 2015 form and to all documents to which access had previously been denied.

8.

On January 4, 2021, the complainant submitted a mediation request to the First Line Service (hereinafter SPL) of the Data Protection Authority (hereinafter APD). Through this mediation request, the complainant exercised his right of access for the fourth time. In this request, he demanded a copy of the end-of-interview form from March 2015, the complete opinion drafted by the prevention advisor, as well as its annexes, and the personal notes of the prevention advisors concerning him. The defendant responded to the SPL's request that the copies of the documents to which the complainant was entitled had been transmitted to him. The defendant reiterated its refusal to provide the personal notes of the prevention advisors, the complete opinion of the prevention advisor under Article

2 Exhibit 14 of the defendant's inventory, located in Exhibit 49 of the inventory.

3 Exhibit 5 of the inventory.

4 Annexes to the complainant's conclusions. Exhibit 44 of the inventory.

5 See points 4 to 6 above.

6 Namely, a copy of the end-of-interview forms from 2015 and 2019, the end-of-interview form prior to conciliation, a copy of his first request (including its annexes), the correspondence concerning him, a copy of his second formal request (including its annexes), and the letter of refusal of this second formal request.

7 Exhibit 7 of the inventory.

8 Exhibits 9 and 11 of the inventory.

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32septiesdecies of the law of August 4, 1996, concerning the well-being of workers during the execution of their work (hereinafter referred to as "workplace well-being law"). For the other documents, it invoked the exceptions provided for in article 32quinquiesdecies and article 32sexiesdecies. Specifically regarding access to the complete opinion, the defendant relied on article 32sexiesdecies, which stipulates that the employer communicates to the worker the part of the opinion relating to measures that may modify their working conditions.⁹

9.

On April 9, 2021, the complainant filed a complaint with the Data Protection Authority against the defendant.

10.

On April 28, 2021, the complaint was declared admissible by the First Line Service based on articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under article 62, § 1 of the LCA.

11.

On May 25, 2021, the parties concerned were informed by registered mail of the provisions as set out in article 95, § 2 and article 98 of the LCA. They were also informed, pursuant to article 99 of the LCA, of the deadlines for submitting their conclusions. For the findings related to the subject of the complaint, the deadline for receiving the defendant's response conclusions was set for July 6, 2021, the deadline for the complainant's reply conclusions was set for July 27, 2021, and finally, the deadline for the defendant's reply conclusions was set for August 17, 2021.

12.

On June 4, 2021, the defendant agreed to receive all communications related to the case electronically and requested a copy of the file (art. 95, §2, 3° LCA), which was transmitted to them on June 8, 2021.

13.

On July 6, 2021, the Contentious Chamber received the defendant's response conclusions regarding the findings related to the subject of the complaint. The defendant argued in its conclusions that it had not violated article 15 of the GDPR: the documents requested by the complainant had been communicated to them, with the exception of the documents for which the defendant had a legal and valid prohibition to communicate them, namely article 32septiesdecies of the workplace well-being law. The defendant acknowledged that it had not communicated the end-of-interview form from March 2015 because it could not locate that document.

14.

On July 27, 2021, the Contentious Chamber received the complainant's reply conclusions. According to the complainant, the defendant would have violated article 15 of the GDPR, firstly, due to the lack of access to the end-of-interview form from March 2015 and, secondly, by advancing an illegal derogation to the right of access as it was contrary to the GDPR. The complainant also argued that the access granted to a number of documents in their psychosocial file was delayed, and therefore contrary to article 12 of the GDPR.

15.

On August 16, 2021, the Contentious Chamber received the summary conclusions from the defendant regarding the findings related to the subject of the complaint. The defendant reiterated its arguments. It also contested the timeliness of the access granted to the complainant.

16.

On August 9, 2023, the parties were informed that the hearing would take place on October 26, 2023.

17.

On November 26, 2023, the parties were heard by the Contentious Chamber.

18.

On November 13, 2023, the minutes of the hearing were submitted to the parties.

19.

On November 17, 2023, the Contentious Chamber received a minor comment from the defendant regarding the minutes, which had no impact on its deliberation.

II. Reasoning

II.1. Preliminary Questions

II.1.1.

On the functions of the defendant

20. The defendant is a non-profit organization established as an external service for prevention and protection at work within the meaning of article 40 of the workplace well-being law. As such, the defendant has prevention advisors as agents.

21. Employers have the obligation to promote the well-being of their workers and must adopt appropriate preventive measures to prevent psychosocial risks at work.¹⁰ This obligation also implies the creation of an internal service for prevention and protection at work. Employers may also call upon external services for prevention and protection at work.

22. In this context, the defendant had entered into a contractual relationship with the employer of the complainant.

23. Among the appropriate preventive measures to prevent psychosocial risks at work, the employer must establish procedures allowing the worker who believes they have suffered a psychosocial risk to request either an informal psychosocial intervention or a formal psychosocial intervention.¹¹ When an external prevention service is involved, these intervention requests can be directly submitted.

¹⁰ Article 5 of the workplace well-being law.

¹¹ Article 32/2, §2, paragraph 3 of the workplace well-being law.

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with a prevention advisor from this external service.¹² After an intervention, the prevention advisor drafts an opinion, intended for the employer, recommending the adoption of individual measures regarding the requesting person or collective measures.

24.

Although the defendant is contractually engaged with the employer of the complainant, the defendant had the obligation to carry out its legal missions independently.¹³ The defendant therefore determined the purposes and means of the processing carried out with the personal data of the complainant. Consequently, the defendant is responsible for the processing carried out with the complainant's data within the meaning of Article 4.7 of the GDPR, which the defendant does not contest.

II.1.2. On the personal data processed by the defendant

25.

In the exercise of their missions, prevention advisors maintain an individual file related to the persons requesting their intervention. The content of this file is governed by Article I.3-31 of the Code on Well-being at Work:¹⁴

“The prevention advisor for psychosocial aspects opens and keeps up to date an individual file that includes, depending on the procedure used:

1° where applicable, the document that certifies the informative personal interview referred to in Article I.3-11;

2° the document relating to the type of informal psychosocial intervention chosen by the requester;

3° the document that certifies the mandatory personal interview referred to in Article I.3-14, § 2;

4° the request for formal psychosocial intervention;

5° where applicable, the document containing the refusal or acceptance of the introduction of the request;

¹² Article I.3-1, paragraph 4 of the Code on Well-being at Work.

¹³ Article 43 of the Well-being at Work Act.

¹⁴ Article I.3-41 similarly provides for a request for formal intervention regarding acts of violence or moral or sexual harassment at work:

“Besides the elements referred to in Article I.3-31, the individual file includes:

1° the document that informs the employer that a request for formal psychosocial intervention regarding acts of violence or moral or sexual harassment at work has been submitted and that the worker benefits from the protection referred to in Article 32redecies of the Act;

- 2° the document that informs the employer of the protection of witnesses referred to in Article 32tredecies, § 1/1, 5° of the Act;
- 3° where applicable, the proposals for precautionary measures communicated to the employer;
- 4° where applicable, the employer's decision regarding the precautionary measures;
- 5° where applicable, the request for intervention from the official responsible for oversight.”

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- 6° the document that informs the employer that a request for formal psychosocial intervention has been submitted;
 - 7° the document that informs the requester that their request mainly relates to risks that have a collective nature;
 - 8° the dated and signed statements of the persons heard by the prevention advisor for psychosocial aspects;
 - 9° where applicable, the document relating to the extension of the deadline for providing an opinion to the employer;
 - 10° the opinion of the prevention advisor for psychosocial aspects;
 - 11° the document that notifies the date of the submission of the opinion to the employer;
 - 12° the document that transmits the opinion of the prevention advisor for psychosocial aspects to the persons referred to in Article I.3-25;
 - 13° the documents referred to in Articles I.3-26 and I.3-27 provided to the requester, the other directly involved person, and the prevention advisor responsible for managing the internal service;
 - 14° the document containing the reasoned decision of the employer regarding the follow-up given to the request;
 - 15° where applicable, the document referred to in Article I.3-20 containing proposals for preventive measures;
 - 16° where applicable, the document referred to in Article I.3-21 that informs the employer of the analysis by the prevention advisor for psychosocial aspects of the request that is mainly collective as well as the written agreement of the requester.
- The personal notes taken by the prevention advisor for psychosocial aspects during their actions cannot be included in the file.”

26.

According to the GDPR, any information concerning an identified or identifiable natural person constitutes personal data.¹⁵ This notion of information must receive an extensive interpretation and can thus encompass both objective and subjective information, in the form of opinions or assessments, provided that they concern the person in question.¹⁶ In light of the documents mentioned in Article I.3-31 of the Code on Well-being at Work, a prevention advisor has the obligation to keep documents that include

15 Article 4.1 of the GDPR.

16 CJEU, December 20, 2017, judgment Nowak, C-434/16, § 34.

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regarding information concerning the complainant, including observations about the complainant and their workplace, and thus processing personal data within the meaning of the GDPR.

27.

This case concerns the exercise of the right of access by the complainant to the personal data contained in this file. During numerous exchanges with the defendant, the complainant requested access to several documents. It emerges from the mediation process initiated by the SPL, the conclusions of the complainant, as well as the hearing, that the complainant, at the time of bringing the case before the Contentious Chamber, raised as a grievance the fact that the defendant had not respected their right of access regarding the following documents:

1.

the personal notes of the prevention advisors concerning their various requests;

2. the complete opinion issued by the advisor following their request for formal intervention, as well as its annexes;

3. the end-of-interview form from March 2015.

28.

The fact that these documents contain personal data is not disputed by the defendant, except for the part of the complete opinion that contains collective measures. Indeed, the defendant argues, relying on parliamentary work, that the part of an opinion including collective measures does not constitute personal data. These measures would at most be information related to the general prevention of the company.

29.

For the Contentious Chamber, this point calls for several comments. First of all, the Contentious Chamber notes that the legislator, regarding the part of the opinion containing collective measures, considers that "it does not constitute personal data within the meaning of the law of December 8, 1992 since it does not concern information about a natural person but rather information related to the general prevention of the company." The Contentious Chamber recalls that the definition of personal data in force at the time the bill was adopted, contained in the law of December 8, 1992, is identical to that contained in Article 4.1 of the GDPR, which defines it as "any information relating to an identified or identifiable natural person."

30. This definition must be read in light of the case law of the Court of Justice of the European Union. It notably rules that "This definition is applicable when, due to their content, purpose, and effect, the information in question is linked to a

17 Draft law amending the law of August 4, 1996, concerning the well-being of workers during the execution of their work, regarding judicial procedures, Doc Parl, Chamber, 2005-2006, Doc 51/2687/1, p. 42.

18 Summary conclusions of the defendant, p. 10. Referring to: Draft law amending the law of August 4, 1996, concerning the well-being of workers during the execution of their work, regarding judicial procedures, Doc Parl, Chamber, 2005-2006, Doc 51/2687/1, p. 42.

19 Draft law amending the law of August 4, 1996, concerning the well-being of workers during the execution of their work, regarding judicial procedures, Doc Parl, Chamber, 2005-2006, Doc 51/2687/1, p. 42.

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identified natural person [...]. To determine whether a natural person is identifiable, directly or indirectly, it is necessary to consider all means that could reasonably be implemented either by the data controller, as defined in Article 4, point 7, of the GDPR, or by others, to identify that person, without requiring that all information allowing for the identification of said person be held by a single entity....

31. It logically follows that to ascertain whether a document contains personal data, a concrete assessment must be made based on the information in question and its link to an identifiable person, directly or indirectly. The legislator's position of considering that a certain document does not inherently contain personal data and automatically excluding it from the material scope of the GDPR is not compliant with the latter and with the case law of the CJEU.

32. Furthermore, the legislator adopts a contradictory position when it excludes this document from the scope of the GDPR but also provides for an exception to the right of access concerning it. These two positions are irreconcilable. The establishment of an exception to the right of access regarding certain data requires as a sine qua non condition that these data fall under the scope of the GDPR. The system set up by the legislator in the law on occupational well-being seems to create a confusion, whether intentional or not, between the right of access to documents within the framework of the occupational well-being law and the right of access as defined by the GDPR.

33. However, the Court of Justice of the European Union clearly distinguishes between these two instruments, as it states that "the term 'copy' [in the sense of Article 15.3 of the GDPR] does not refer to a document as such, but to the personal data it contains, which must be complete." The right of access as defined in Article 15.3 of the GDPR is therefore not a right to obtain access to documents but rather to data. This does not exclude, however, that a person may, when exercising the right of

access, “obtain a copy of extracts from documents or even entire documents or extracts from databases that contain, among other things, said data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred on them by this regulation, it being emphasized that account must be taken, in this regard, of the rights and freedoms of others.”

34. Despite the apparent contradictions in the law on occupational well-being, the Contentious Chamber acknowledges that it has indeed established a derogatory regime to the right of access in Belgian legislation. The legality of this arrangement and its application by the defendant must therefore be analyzed by the Contentious Chamber under Article 23 of the GDPR.

II.1.3. Composition of the case file

35. On July 13, 2021, the complainant sent an email to the Contentious Chamber complaining that during the transmission of the case file, the defendant had received information concerning another file opened by the complainant with the Data Protection Authority (DPA). The complainant argued that the defendant had used some of this information in its conclusions.

36. The document in question (hereinafter, “the disputed document”) is an email dated December 11, 2020, sent by the complainant to the then Director of the SPL. In it, he requests updates on two files he has opened with the DPA: the present file and another file (hereinafter, “the other file”). This disputed document was added by the SPL to the case file of the present matter as well as the other file since it includes interactions between the complainant and the DPA regarding these matters. The disputed document includes three annexes, one related to the other file and two related to the present case. The annex related to the other file includes, among other things, the legal opinion of a SPL employee indicating that the law of July 30, 2018, does not contain an exhaustive list of all limitations on the rights of data subjects under Belgian law. It is this information that was referenced by the defendant in its conclusions.

37. The part of the legal argument put forward by the defendant in its conclusions based on the disputed document was already known to the Contentious Chamber since it had been expressed by a SPL employee and was part of the internal file of the DPA. The fact that it was referenced by the defendant could not therefore influence its viewpoint on this matter. In other words, the conclusion reached by the Contentious Chamber could not have been different, even assuming that the part of the argument based on the disputed document was excluded from the discussions since the Contentious Chamber had already been aware of this viewpoint.

38. In light of the elements below, the Contentious Chamber finds that this point is therefore without impact on the case.

23 Document 8 of the case file inventory.

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II.2. On the merits of the case

39. The grievances raised by the complainant fall into two categories. First, the complainant contests the refusal by the defendant to provide him with a copy of certain documents (namely, the personal notes of the prevention advisors, the opinions issued by the prevention advisors, including the annexes to these opinions) and claims access to a pre-interview completion form dated March 2015. Second, the complainant argues that the access granted to him to certain documents was delayed. The Disciplinary Chamber will first examine the scope of the complainant's right of access and then whether the access actually granted by the defendant complied with the provisions of Article 12 of the GDPR.

II.2.1. On the violation of the right of access (Article 15 of the GDPR)

II.2.1.1.

Position of the parties

40. The complainant has repeatedly requested a copy of the personal notes of the prevention advisors, the complete opinion, and the annexes of the opinions issued by the prevention advisors in the context of the interventions initiated at his request. According to him, the defendant could not refuse him

access to these documents. He believes that the exception to the right of access provided for by the occupational health law is not compliant with the GDPR. He also complains that he did not receive the March 2015 completion form.

41. The defendant argued that it could not legally grant him access to certain documents requested by the complainant due to an explicit exception to the right of access provided for in Article 32septiesdecies of the occupational health law, which restricts access to the following documents: the personal notes of the prevention advisors, the opinions and annexes issued by a prevention advisor following a formal intervention. It does not contest the obligation to provide the March 2015 completion form, but claims that it no longer has it.

42. The complainant raised the fact that Article 32septiesdecies refers to the law of December 8, 1992. According to the complainant, exceptions to the GDPR are framed by Article 23 of the GDPR and must be specified in Chapter III of the law of July 30, 2018, regarding the protection of natural persons with regard to the processing of personal data (hereinafter "the law of July 30, 2018"). However, the exception in Article 32septiesdecies is not included there. And Article 32septiesdecies bases its exception on the law of December 8, 1992, which was repealed by the law of July 30, 2018. Therefore, according to the complainant, this exception to the right of access is no longer applicable, and the defendant cannot invoke it against him.

43. According to the defendant, Article 32septiesdecies, as an exception to Article 15 of the GDPR, is still in force and implements Article 23 of the GDPR. The defendant argues that the list of exceptions provided for in Chapter III of the law of July 30, 2018, is not exhaustive.

II.2.1.2.

Position of the Disciplinary Chamber regarding compliance with the right of access and its limitations (Articles 15 and 23 of the GDPR)

44. As the data controller, the defendant is required to comply with data protection principles and must be able to demonstrate that these are respected. It must also implement all necessary measures to this end, in accordance with the principle of accountability.

45. Under Article 15.1 of the GDPR, the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed. When that is the case, the data subject has the right to access the said personal data as well as a series of information listed in Article 15.1, a) - h). The GDPR further provides, under Article 15.3, that the data subject has the right to obtain a copy of the personal data undergoing processing. Article 15.4 provides that this right to a copy must not adversely affect the rights and freedoms of others.

46. The Disciplinary Chamber recalls that the right of access is one of the major requirements of the right to data protection: it constitutes the "gateway" that allows the exercise of the rights of the data subject.

To this end, the data subject submits a dated and signed request to the data controller or to any other person designated by the King. The information is communicated without delay and at the latest within forty-five days of receipt of the request. The King may set the modalities for exercising the right referred to in paragraph 1.

[...]

25 Article 280 of the law of July 30, 2018.

26 Articles 5.2 and 24 of the GDPR.

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other rights conferred to the data subject by the GDPR, such as the right to rectification²⁷ or the right to erasure²⁸.²⁹

47.

However, the right of access, like other rights provided for by the GDPR, is not an absolute right. This right must be balanced against other rights³⁰ or other general interest objectives. Article 23 of the GDPR allows the Belgian legislator to adopt derogations from the rights provided for in Articles 15 to 22 of the GDPR, subject to the fulfillment of certain conditions.

On the lawfulness of the derogation from the right of access provided for in Article 32septiesdecies of the Occupational Well-being Act in light of Article 23 of the GDPR

48. Article 32septiesdecies states the following:

"By way of derogation from Article 10 of the law of December 8, 1992, on the protection of privacy in relation to the processing of personal data, the data subject does not have access to personal data and the origin of such data contained in the following documents:

1° The notes taken by the prevention advisor and the trusted person during interviews conducted as part of informal psychosocial intervention, subject to the application of Article 32quinquiesdecies, paragraph 2, 1°;

2° The request for formal psychosocial intervention, subject to the application of Article 32quaterdecies, paragraph 1, and Article 32quinquiesdecies, paragraph 2, 3°, b);

3° The documents containing the statements of persons heard by the prevention advisor in the context of the examination of the request for formal psychosocial intervention, subject to the application of Article 32quaterdecies, paragraph 2;

4° The opinion of the prevention advisor, subject to the application of Article 32quinquiesdecies, paragraph 2, 2°, c), d), e), and Article 32sexiesdecies;

5° The specific personal data collected by the prevention advisor referred to in Article 32sexies, § 1 or the trusted person during their actions and which are exclusively reserved for them."

27 Article 16 of the GDPR.

28 Article 17 of the GDPR.

29 CJEU, judgment of January 12, 2023, Österreichische Post AG, C-154/12, § 38; CJEU, judgment of July 17, 2014, YS et al.,

C-141/12 and C-372/12, § 44; CJEU, judgment of December 20, 2017, Nowak, C-434/16, § 57.

30 Article 15.4 of the GDPR.

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49. First, the Litigation Chamber verifies that the derogation in question is still applicable, which the complainant contests.

While it is true that Article 280 of the law of July 30, 2018, states that the law of December 8, 1992, is repealed, Article 253, paragraph 1 of the law of July 30, 2018, provides that: "The existing laws, royal decrees, and any other regulations that refer to the law of December 8, 1992, on the protection of privacy in relation to the processing of personal data are presumed to refer to this law or, where applicable, to the Regulation."

The Litigation Chamber therefore finds that the derogation referred to in Article 32septiesdecies now refers to the law of July 30, 2018, or where applicable to the GDPR, and is still in force. Article 10 of the law of December 8, 1992, enshrined the right of access. This article has therefore been replaced by Article 15 of the GDPR, which also governs the right of access.

50. As an exception to Article 15 of the GDPR, Article 32septiesdecies must comply with the conditions set out in Article 23 of the GDPR. The Litigation Chamber thus proceeds to examine the validity of Article 32septiesdecies of the Occupational Well-being Act in light of the requirements of Article 23 of the GDPR. The provisions of Article 23 of the GDPR aim to create a balance between these rights and other legitimate interests in a democratic society. To this end, restrictions on the rights provided for in Articles 12 to 22 of the GDPR are possible, subject to the fulfillment of the following conditions:

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First: the derogation must be provided for by a legislative measure;

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Second: the derogation must pursue one of the objectives listed in the exhaustive list of paragraph 1 of Article 2331;

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Third: the derogation must respect the essence of the fundamental rights and freedoms;

31 Namely:

a)

national security;

b)

national defense;

c)

public security;

d)

the prevention and detection of criminal offenses, as well as investigations and prosecutions in this regard or the enforcement of criminal sanctions, including protection against threats to public security and the prevention of such threats;

e)

other important objectives of general public interest of the Union or a Member State, including a significant economic or financial interest of the Union or a Member State, including in the areas of monetary, budgetary and fiscal policy, public health, and social security;

f)

the protection of the independence of the judiciary and judicial proceedings;

g)

the prevention and detection of breaches of the ethics of regulated professions, as well as investigations and prosecutions in this regard;

h)

a mission of control, inspection, or regulation related, even occasionally, to the exercise of public authority, in the cases referred to in points a) to e) and g);

i)

the protection of the data subject or the rights and freedoms of others;

j)

the enforcement of civil law requests.

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Fourth: the derogation must be a necessary and proportionate measure in a democratic society (proportionality test);

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Fifth: the legislative measure must contain specific provisions relating to certain characteristics of the processing in question.³²

51. Regarding the first condition, the derogation must be provided for in a legislative measure of European Union law or of a Member State. This legislative measure does not necessarily have to be a law, an order, or a decree adopted by a parliament, but any legal norm that is sufficiently clear and precise, the application of which must be foreseeable for any concerned party.³³ In this case, the derogation is provided for by a norm having the force of law. This law establishes a clearly defined list of documents to which the right of access does not apply and also provides for certain exceptions to this derogation. The derogation is deliberately limited and restricted to specific documents and provides for exceptions to this derogation. The law therefore uses sufficiently clear terms to indicate to everyone in what circumstances and under what conditions the limitation on the right of access occurs. The Contentious Chamber finds Article 32septiesdecies sufficiently clear, precise, and foreseeable. The first condition is thus met.

52. Secondly, the derogation to the right of access provided for by Article 32septiesdecies of the Occupational Well-Being Act must pursue one of the reasons exhaustively listed in Article 23. Article 32septiesdecies is part of a law aimed at ensuring the safety and health of workers. In this context, prevention advisors must assist employers in detecting risks to workers and in applying protective legislation for workers. The Contentious Chamber therefore considers that this objective aims to ensure the protection of the concerned person or the rights and freedoms of others, as stated in Article 23.1, i). Recital 73 of the GDPR further indicates that the protection of the concerned person referred to in Article 23 includes social protection.

53. Thirdly, the derogation must respect the essence of the right subject to limitation, in this case, the right of access provided for by Article 15 of the GDPR. The GDPR does not define what the essence of a right or freedom means, and the Court of Justice of the European Union has not

32 Article 23, §2: "In particular, any legislative measure referred to in paragraph 1 contains specific provisions relating, at least, where applicable:

- a) to the purposes of the processing or categories of processing;
- b) to the categories of personal data;
- c) to the extent of the limitations introduced;
- d) to the safeguards intended to prevent abuse or unlawful access or transfer;
- e) to the determination of the controller or categories of controllers;
- f) to the retention periods and applicable safeguards, taking into account the nature, scope, and purposes of the processing or categories of processing;
- g) to the risks to the rights and freedoms of the concerned persons; and
- h) to the right of the concerned persons to be informed of the limitation, unless this risks undermining the purpose of the limitation."

33 Recital 41 of the GDPR.

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does not establish a clear definition of this notion either.³⁴ Based on the guidelines of the European Data Protection Committee³⁵, the Contentious Chamber considers that the essence of a right is reached when the scope of its protection is so reduced that its existence is called into question for the individuals concerned.³⁶ In this case, as indicated in point 49, Article 32septiesdecies has the effect of restricting the right of access to data contained in a clearly defined list of documents and also provides for certain exceptions to this derogation. The derogation is intentionally limited and restricted and therefore does not affect the right of access to data contained in other documents held by prevention advisors. Consequently, the Contentious Chamber finds that this provision does not contravene the essential content of the right of access.

54. Fourthly, the proportionality test aims to verify whether the interference with the right to data protection is strictly necessary to achieve the objective pursued by the derogation.³⁷ In the case at hand, the social protection of workers using the services of a prevention advisor is pursued by limiting their right of access to certain documents, under certain circumstances. Specifically, this limitation aims, as confirmed by the defendant during the hearing³⁸, to allow the prevention advisor to provide impartial advice and to develop solutions, while ensuring that the relational climate in the workplace of the individuals concerned is not degraded. It thus appears necessary for the protection of the individuals concerned in their workplace. As already noted above, the documents exempt from the right of access are enumerated by law, and their non-access is likely to achieve the purpose pursued by the derogation³⁹.

55. Fifthly, the legislative provision must contain certain information listed in §2 of Article 23 regarding the limitation it contains, relating to:

- The purposes of the processing or categories of processing;
- The categories of personal data;

34 See, for example, CJEU, October 6, 2015, judgment in *Schrems v. Data Protection Commissioner*, where the CJEU notably ruled that a U.S. regulation allowing U.S. authorities to access the content of electronic communications of concerned individuals in a generalized manner is contrary to the

essential content of the fundamental right to respect for private life guaranteed by Article 7 of the Charter of Fundamental Rights (§94).

35 European Data Protection Committee, Guidelines 10/2020 on restrictions under Article 23 GDPR, points 14 and 15, p. 7, available at: https://edpb.europa.eu/system/files/2021-10/edpb_guidelines2020_10_on_art23_adopted_after_consultation_en.pdf

36 See notably M. BRKAN, "The Concept of Essence of Fundamental Rights in the EU Legal Order: Peeling the Onion to its Core," *European Constitutional Law Review*, 2018, p. 363.

37 CJEU, judgment of April 8, 2014, *Digital Rights Ireland*, C-293/12, C-594/12, § 149-150.

38 Minutes of the hearing of October 26, 2023, p. 4.

39 The reason for the derogation is explained for each of the documents referred to in the preparatory work. See draft law amending the law of August 4, 1996, concerning the well-being of workers in the execution of their work, regarding judicial procedures, Doc Parl, Chamber, 2005-2006, Doc51/2687/1, p. 39 et seq.

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- The extent of the limitations introduced;
- The safeguards intended to prevent abuse or unlawful access or transfer;
- The determination of the data controller or categories of data controllers;
- The retention periods and applicable safeguards, taking into account the nature, scope, and purposes of the processing or categories of processing;
- The risks to the rights and freedoms of the individuals concerned; and
- The right of the individuals concerned to be informed of the limitation, unless this risks undermining the purpose of the limitation.

The Contentious Chamber notes that these elements are present, even if they are not explicitly cited. The purposes of the processing and the categories of processing are delineated by the missions assigned to prevention advisors. The categories of data and the extent of the limitations are indicated in Article 32septiesdecies. The retention period and the safeguards applicable to this retention or intended to prevent abuse or unlawful transfers are specified in the Occupational Well-Being Code.⁴⁰

56. The Contentious Chamber therefore concludes that the limitation of the right of access provided for by Article 32septiesdecies of the Occupational Well-Being Code meets the conditions set out in Article 23 of the GDPR and, consequently, applies to the complainant's requests.

The scope of the complainant's right of access

57. It appears from the case files, including the mediation procedure undertaken by the SPL and the complainant's conclusions, that the latter submitted a request for access to the defendant for the following documents:

1. The personal notes of the prevention advisors regarding his various requests;
2. The complete opinion rendered by the advisor following his request for formal intervention, as well as its annexes;
3. The end-of-interview form from March 2015.

40 Article I.3-32 notably states that the prevention advisor is responsible for the individual file and the retention period is twenty years. Articles I.3-33 and I.3-34 also indicate the authorized transfers and the procedure to follow for such a transfer. Article I.3-6, §1st paragraph 4.

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58. Regarding the first point, Article 32septiesdecies, 1° 41 prohibits the concerned person from accessing the notes taken by the prevention advisors during the interviews conducted as part of the informal psychosocial intervention. However, the prevention advisor responsible for an informal psychosocial intervention is authorized to communicate the information they deem relevant for the proper conduct of the intervention to the participants ⁴². It is therefore up to the prevention advisor to determine whether the communication of certain information to the concerned person is necessary for the proper conduct of the intervention. The communication of the notes in their entirety does not appear to be authorized and cannot, under any circumstances, be imposed on the prevention advisor. Under Article 32septiesdecies of the Occupational Well-being Act, the complainant cannot therefore

demand access to the personal notes of the prevention advisors concerning them.

59. Furthermore, the exemption in Article 32septiesdecies, 4° 43 also prohibits the concerned person from accessing the opinion of the prevention advisor, subject to the application of Article 32quinquiesdecies, paragraph 2, 2°, c), d), e) and Article 32sexiesdecies. The provisions mentioned in the two cited articles provide for the following transfers regarding the concerned person requesting the intervention:

- The prevention advisor transmits to the requesting person and the involved person the measures regarding the specific work situation that they recommend adopting within the framework of a formal psychosocial intervention 44;
- The employer must only provide a copy of the opinion issued by the prevention advisor to the worker who requested the formal psychosocial intervention for acts of moral harassment when they intend to take legal action. 45

60. This article prohibits the defendant from granting the complainant access to the complete opinion. They can only provide the measures regarding their specific work situation. It appears from the documents in the file, particularly from the email sent by the complainant on October 12, 2020, to the data protection officer of the defendant, that the complainant wished to take legal action against their former employer 46. In these circumstances, Article 32sexiesdecies establishes an obligation on the part of the employer to provide a copy to the concerned person. In this case, it

41 "1° The notes taken by the [prevention advisor referred to in Article 32sexies, § 1] and the trusted person during the interviews conducted as part of the informal psychosocial intervention, subject to the application of Article 32quinquiesdecies, paragraph 2, 1°"

42 Article 32quinquiesdecies, paragraph 2, 1° of the Occupational Well-being Act.

43 "4° the opinion of the prevention advisor referred to in Article 32sexies, § 1, subject to the application of Article 32quinquiesdecies, paragraph 2, 2°, c), d), e), and Article 32sexiesdecies"

44 Article 32quinquiesdecies, paragraph 2, 2°, d) of the Occupational Well-being Act.

45 Article 32sexiesdecies of the Occupational Well-being Act.

46 Attachment of Document 5 of the file inventory, where the complainant wrote: "Regarding the annexes of the complete opinion, Article 32sexiesdecies stipulates that the person who has submitted the request for formal intervention and who intends to take legal action, as is my case, can access the opinion of the [prevention advisors]."

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It follows from the conclusions of the complainant and the hearing that took place before the Contentious Chamber that he obtained the complete opinion by requesting it from the employer⁴⁷. For the Contentious Chamber, the mechanism established by Article 32septiesdecies, 4° has therefore been respected, and no fault can be attributed to the defendant.

61.

The complainant also requested access to the annexes of the opinion. During the hearing, the complainant clarified that he does not know what these annexes specifically contain, but that they seem to him to be an integral part of the opinion and that he therefore believes he has the right to obtain a copy. The defendant clarified during the hearing that the annexes could consist of testimonies from the persons heard, for example, but also other documents. She added that these annexes were never provided to the parties, whether the concerned person or the employer. She confirms that the annexes are part of the complete opinion but adds that since she is not authorized to provide the complete opinion to the complainant, she cannot provide him with the annexes either.

62.

The Contentious Chamber notes that both parties agree that the annexes of the opinion are an integral part of the opinion itself. In accordance with the conclusion reached in point 58 above, the Contentious Chamber therefore judges that the annexes of the opinion are also subject to the exception provided for in Article 32septiesdecies, 4°, which prohibits the defendant from granting access to these documents to the complainant.

63. This conclusion is further reinforced by Article 32septiesdecies, 3° 48 of the welfare law, which prohibits the concerned person from accessing documents containing the testimonies of the persons

heard by the prevention advisor in the context of a formal psychosocial intervention. The welfare at work law stipulates that witnesses and the person implicated only receive a copy of their own statement⁴⁹.

64. As the Contentious Chamber noted in points 59 and 60 above, only the employer is subject to the obligation to grant access to the complete opinion to the concerned person when that person intends to take legal action. For the Contentious Chamber, this should include the annexes in the event that he has received them. However, according to the statements made by the defendant during the hearing, the employer does not receive the annexes of the opinion either, and no evidence has been brought to the attention of the Contentious Chamber that would allow it to conclude that the employer, who is not a party to the proceedings, has failed to provide the annexes of the opinion to the complainant.

47 See page 5 and document 7 of the complainant's conclusions.

48 "3° the documents containing the statements of the persons heard by the [prevention advisor referred to in Article 32sexies, § 1] in the context of the examination of [the request for formal psychosocial intervention], subject to the application of Article 32quaterdecies, paragraph 2."

49 Article 32quaterdecies, paragraph 2 of the welfare at work law.

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65. Consequently, the Contentious Chamber notes that the complainant cannot request access to the annexes of the complete notice from the defendant, as the latter is subject to a prohibition on providing them.

66. Finally, the last document requested by the complainant is a copy of the end-of-interview form from March 2015. The defendant does not contest the complainant's right to access it under Article 15 of the GDPR, but it cannot comply with this access request as it no longer possesses this document. The Contentious Chamber notes that the Occupational Welfare Code (Article I.3-31, paragraph 1, 1°) requires the defendant to retain in the file of the data subject a "document that certifies the informational personal interview." It appears that the defendant's practice was to retain not one but two documents. Indeed, in his conclusions, the complainant confirms having received a certificate of attendance for the March 2015 interview. The defendant, for its part, admits to having lost the end-of-interview form from March 2015, which is a distinct document.

67. The Contentious Chamber finds that the complainant's file does contain a document that certifies the informational personal interview from March 2015 and that this document has been provided to the complainant. Another document, named the end-of-interview form, which can equally be considered as a document certifying the interview, has evidently been misplaced by the defendant. In its decision 15/2021, the Contentious Chamber had already established that it could not order compliance with an access request concerning data that has been erased or destroyed. In that decision, the Contentious Chamber had ordered the defendant to provide a sworn statement certifying the erasure of the data. The Contentious Chamber has taken note of the sworn statement provided by the defendant in the present case. It therefore concludes that the defendant cannot provide the complainant with a copy of the end-of-interview form of which it no longer has possession.

68. The Contentious Chamber nonetheless questions the loss or destruction of such a document containing personal data of the complainant. Such a scenario could constitute a data breach within the meaning of Article 4.12 of the GDPR. The Contentious Chamber recalls the obligations of the data controller, which consist of adopting technical and organizational security measures and preventing and notifying data breaches, in accordance with Articles 33 and 34 of the GDPR.

50 As required by Article I.-3-31, paragraph 1, 1° of the Occupational Welfare Code

51 Contentious Chamber, decision 15/2021 of February 9, 2021. Available at

<https://www.autoriteprotectiondonnees.be/publications/decision-quant-au-fond-n-15-2021.pdf>

52 Document 11 of the defendant's summary conclusions file.

53 Article 32 of the GDPR.

54 On this subject, see also EDPB, Guidelines 9/2022 on personal data breach notification under GDPR, available at https://edpb.europa.eu/system/files/2023-04/edpb_guidelines_202209_personal_data_breach_notification_v2.0_en.pdf

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69. In conclusion, regarding the three documents requested by the complainant (see points 27 and 40), the Contentious Chamber finds that the complainant could not exercise his right of access provided for by Article 15 of the GDPR to obtain a copy of the complete advice from the prevention advisor and its annexes, or the notes from the prevention advisor. The complainant was entitled to obtain the end-of-interview form, but this cannot be provided to him as it has been declared lost by the defendant. The Contentious Chamber therefore concludes that there has been no violation of Article 15 of the GDPR.

II.2.2. Regarding compliance with the modalities for exercising the right of access (Article 12 of the GDPR)

II.2.2.3.

General considerations

70. Article 12 of the GDPR concerning the modalities for exercising their rights by data subjects provides that the data controller must facilitate the exercise of the rights of the data subject (Article 12 §2 of the GDPR) and provide information on the measures taken in response to their request as soon as possible and, at the latest, within one month of the request (Article 12 §3 of the GDPR). For more complex requests, or when the data controller receives a large number of requests, this initial one-month period may be extended by two months (Article 12 §3). When the data controller does not intend to comply with a request, they must notify the data subject of the reasons for their refusal within one month, along with information that a complaint against this refusal can be lodged with the data protection supervisory authority (Article 12 §4 of the GDPR).

71.

In the event of a refusal to comply with a request, the Contentious Chamber emphasizes the importance of the reasoning behind this refusal. Article 12 §4 of the GDPR must be read in conjunction with Article 12 §2: to facilitate the exercise of the rights of data subjects, a data controller must clearly and simply state the reason for their refusal. If this refusal is based on a legal provision, the relevant legal provision must be communicated to the data subject. Indeed, it would be difficult for a data subject to assess the relevance of a refusal and exercise their rights if the reasoning for such a refusal is based on an incorrect or missing legal basis.

II.2.2.4.

Position of the parties

72.

The complainant argues that the defendant granted him late access to the requested documents: his request was made on February 15, 2019, and the copy was sent to him on October 20, 2020. According to the complainant, the defendant did not comply with Article 12 of the GDPR. For its part, the defendant contests any violation of Article 12 and argues that it complied with the deadlines prescribed by the GDPR. Furthermore, the defendant asserts that its refusal to grant access cannot be confused with a lack of response.

73.

During the hearing, the defendant argued that the Contentious Chamber could not examine a potential violation of Article 12 of the GDPR on its part since only compliance with Articles 15 and 23 of the GDPR had been included in the letter from the Contentious Chamber dated May 27, 2021, informing the parties that the case would be treated on the merits based on Article 98 LCA (hereinafter, letter Article 98). The defendant refers in this regard to the case law of the Market Court.

74.

The Contentious Chamber first asserts that the defendant was able to address the potential violation of Article 12 of the GDPR in its conclusions, responding to the complainant's conclusions. It cannot therefore claim that this article was not raised by the complainant, and it should be noted that it was able to present its defense in this regard. Furthermore, given the obvious link between Article 12 of the GDPR, which prescribes the modalities for exercising the rights of the data subject, and Article 15 of the GDPR which regulates the right of access, the Contentious Chamber considers itself competent to rule on the alleged violations of Article 12 of the GDPR.

75.

Regarding the complainant's first exercise of the right of access for the personal notes of the prevention advisor, the complainant submitted his request on February 15, 2019. The defendant's agent responded to him on February 15, 2019, with a refusal based on the Royal Decree of April 10, 2014, concerning the prevention of psychosocial risks at work. Subsequently, on February 28, 2019, this refusal was justified and based on Article L.3-31, paragraph 2 of the Code on Well-being at Work, and Articles 32quaterdecies and quinquiesdecies of the law on well-being.

76.

The Contentious Chamber notes that the defendant responded to the complainant within the one-month deadline and justified its refusal. However, the legal basis invoked by the defendant is not relevant to justify this refusal. Indeed, it is Article 32septiesdecies that prohibits access to the personal notes of prevention advisors by workers. Article L.3-31 indicates the content of an individual file but is not relevant to limit the scope of the right of access of a data subject. Therefore, the defendant violated the provisions of Article 12.4 of the GDPR by invoking an irrelevant legal basis to justify its refusal.

77.

Regarding the second exercise of the right of access for his medical file⁵⁵ and his psychosocial file on February 15 and 21, 2019, the Contentious Chamber notes that the defendant responded to this request on February 21, 2019.

⁵⁵ The complainant having indicated during the hearing that he had no grievances regarding access to his medical file, this point is not addressed by the Contentious Chamber.

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78.

However, it appears from the documents that it was only on October 20, 2020, that the complainant actually received a copy of his file (without the disputed documents)⁵⁶. By this late sending of the copy of the complainant's psychosocial file on October 20, 2020, while the request had already been made on February 15, 2019, and repeated several times, the defendant did not comply with the one-month deadline. The Contentious Chamber finds that the defendant violated Article 12.3 of the GDPR.

79.

Regarding the third exercise of the complainant's right of access, the complainant had contacted the data protection officer of the defendant and requested a copy of his psychosocial file, the annexes of the opinions issued by the defendant following the two interventions requested by the complainant, and all personal notes from the prevention advisors concerning him. This request was made on September 28, 2020, and was transferred to the data protection officer of the defendant on October 7, 2020. The data protection officer responded on October 9, 2020, with a general refusal (this refusal did not concern the complainant's statement during the intervention of a prevention advisor). The defendant's officer justified this by stating that prevention advisors are bound by professional secrecy,⁵⁷ the violation of which is sanctioned by Article 458 of the Penal Code. The Contentious Chamber notes that this response was provided within the one-month deadline.

80. Although the refusal of the officer is justified, the Contentious Chamber finds this response incomplete and erroneous. Indeed, the complainant had the right to request a copy of his psychosocial file. The relevant legal provision for opposing a refusal to the complainant's request, and this only for certain documents (see points 45 to 49), is Article 32septiesdecies. Moreover, professional secrecy is precisely aimed at protecting individuals who confide in professionals. Professionals bound by professional secrecy cannot therefore invoke professional secrecy against these individuals to deny them information concerning themselves. The Contentious Chamber thus finds that the defendant violated the provisions of Article 12.4 of the GDPR by invoking an irrelevant legal basis to justify its refusal.

81.

Regarding the fourth exercise of the right of access through the SPL, the defendant responded within the allotted time and invoked a relevant legal provision, Article 32septiesdecies. The Contentious Chamber does not find any violation of Article 12 of the GDPR.

II.3. Conclusions

56 See points 4 to 8 above.

57 Article 32quinquiesdecies of the law on well-being at work.

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82.

Based on the previous elements, the Contentious Chamber finds the following violations committed by the defendant:

I.

Although its refusal was legitimate, the defendant incorrectly and therefore incompletely justified its refusal to grant access to the personal notes of the prevention advisors and the annexes of the opinion issued. The defendant invoked irrelevant legal bases and thus did not facilitate the exercise of the complainant's rights. The defendant therefore violated Article 12.4 of the GDPR.

II.

The defendant granted late access to the complainant's psychosocial file. The complainant exercised his right of access on February 15, 2019, but did not receive his file until October 2020, nearly twenty months after his initial request. This access is late and contrary to Article 12, §3 of the GDPR.

III. Corrective measures and sanctions

83. Under Article 100 of the LCA, the Contentious Chamber has the power to:

1° dismiss the complaint;

2° order a dismissal;

3° pronounce a suspension of the ruling;

4° propose a settlement;

5° issue warnings or reprimands;

6° order compliance with the requests of the data subject to exercise their rights;

7° order that the interested party be informed of the security issue;

8° order the freezing, limitation, or temporary or permanent prohibition of processing;

9° order compliance of the processing;

10° order the rectification, restriction, or erasure of data and notification of such to the recipients of the data;

11° order the withdrawal of the accreditation of certification bodies;

12° impose fines;

13° impose administrative fines;

14° order the suspension of cross-border data flows to another State or an international organization;

15° refer the case to the public prosecutor's office of the King of Brussels, which informs it of the follow-up given to the case;

16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

84. The Contentious Chamber decides to issue a reprimand to the defendant based on Article 100, 5° of the LCA for the breaches of Articles 12, §3 and 4 (refusal

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insufficiently reasoned and late response). The choice of this sanction aims to penalize past breaches that have been partially remedied.

IV. Publication of the Decision

85. Given the importance of transparency regarding the decision-making process of the Litigation Chamber, this decision is published on the website of the Data Protection Authority. However, it is not necessary for the identification data of the complainant to be directly communicated for this purpose.

86. In this case, the Litigation Chamber decides to publish this decision with the identification of the defendant's data.

87. The Litigation Chamber specifies that this publication with the identification of the defendant pursues several objectives.

88. It aims, concerning the defendant, a general interest objective. The identification of the defendant is also necessary for the proper understanding of the decision and thus, for the realization of the

transparency objective pursued by the publication policy of the decisions of the Litigation Chamber.

In accordance with Article 108, § 1 of the LCA, an appeal against this decision may be filed, within thirty days from its notification, with the Market Court (Court of Appeal of Brussels), with the Data Protection Authority as the defendant. Such an appeal may be introduced by means of an interlocutory request which must contain the information listed in Article 1034ter of the Judicial Code⁵⁸. The interlocutory request must be

58 The request contains under penalty of nullity:

1° the indication of the day, month, and year;

2° the name, first name, domicile of the applicant, as well as, where applicable, their qualifications and their national register number or business number;

3° the name, first name, domicile and, where applicable, the quality of the person to be summoned;

4° the subject and a brief summary of the grounds of the request;

5° the indication of the judge who is seized of the request;

6° the signature of the applicant or their lawyer.

FOR THESE REASONS,

the Litigation Chamber of the Data Protection Authority decides, after deliberation, pursuant to Article 100, §1, 5° of the LCA, to issue a reprimand for the violation of Article 12, §3 and §4.

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filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code⁵⁹, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS

President of the Litigation Chamber

59 The request, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed with the registry.